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Ramirez v. American Honda Motor

Company, Case No. 23PSCV02704

ORDER ON MOTION

TO STRIKE COSTS

Plaintiff Ana Cecilia Lerma

Ramirez's Motion to Strike Costs is GRANTED in part and DENIED in part.

Background

Plaintiff

Ana Cecilia Lerma Ramirez ("Plaintiff") commenced this lawsuit against Defendant American Honda Motor Company ("Defendant") following her purchase of a 2021 Honda Civic that she alleged was equipped with a defective computerized driver-assisting safety system.

On

November 15, 2023, Plaintiff filed a First Amended Complaint, asserting causes of action against Defendant and Does 1-10 for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2, (2) Violation of Subdivision (b) of Civil Code Section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2, (4) Breach of the Implied Warranty of Merchantability, and (5) Fraudulent Inducement—Concealment.

The matter proceeded to jury trial in January 2026, and the jury returned a defense verdict.

On March 10, 2026, "Judgment After Jury Trial" was entered.

Pending before the Court is Plaintiff's motion to strike and/or tax Defendant's costs.

Legal Standard

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ibid.*)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules Ct., rule 3.1700(a)(1).) A verified cost memorandum is "prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486.)

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil

Procedure section 1010.6(a)(3)(B).”
(Cal. Rules Ct., rule 3.1700(b)(1).)

Discussion

Plaintiff

moves the Court for an order (1) permitting Plaintiff to file the instant motion to strike and/or tax Defendant’s costs notwithstanding the expiration of the standard 15-day period under California Rules of Court, rule 3.1700(a)(1) and (2) striking or, in the alternative, taxing Defendant’s Memorandum of Costs filed March 23, 2026.

Timeliness

A

motion to strike or tax costs must be served and filed within 15 days after service of the costs memorandum. (CRC 3.1700(b)(1).) If a party serves the written costs memorandum by electronic service, the deadline for filing the motion to strike or tax costs is extended by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Here, Defendant served the memorandum of costs on March 23, 2026, by electronic service. Under rule 3.1700(b)(1), Plaintiff’s motion to tax costs was due by April 7, 2026, within 15 days of service, extended by two court days for electronic service under Code of Civil Procedure section 1010.6, subdivision (a)(3)(B). Plaintiff did not file and serve the instant motion until May 13, 2026.

Plaintiff

contends that her delay in filing the instant motion is a result of excusable neglect under Code of Civil Procedure section 473, subdivision (b). (Mot., p. 1.) Specifically, while Plaintiff acknowledges that Defendant’s memorandum of costs was served via e-mail, Plaintiff notes that the email was automatically sorted into quarantine such that the memorandum of costs was not seen or received by Plaintiff’s counsel within the fifteen-day response period. (Mot., p. 1.) Plaintiff further contends that counsel did not learn of the memorandum of costs until Defendant filed its request for entry of judgment on costs. (Mot., p. 1.)

In

opposition, Defendant argues Plaintiff’s motion should be denied in its entirety because of Plaintiff’s late filing, contending that the deadline is

mandatory and jurisdictional and that, in any case, section 473, subdivision (b), does not excuse a delay caused by the internal operation of Plaintiff's own firm's email systems. (Opp., p. 3.)

Delay

in challenging (or failure to challenge) a costs bill waives any objection to the costs claimed thereon. (Douglas v. Willis (1994) 27

Cal.App.4th 287, 290.) Even so, courts have discretion to grant relief under Section 473(b) for "inadvertence" or "excusable neglect" to consider late-filed motions. (Id. at 290 [trial judge properly denied § 473 relief where attorney's excuse for failing to file motion to tax costs "lacked credibility"].)

"In

determining whether the attorney's mistake or inadvertence was excusable, the court inquires whether a reasonably prudent person under the same or similar circumstances might have made the same error." (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258.) Conduct falling below the professional standard of care is not excusable. (Id.)

At

the outset, the Court determines that the deadline for the filing of a motion to tax costs is mandatory, but not jurisdictional. (See Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 426 [holding "[t]he time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory."].)

The

Court further finds that Plaintiff's delay in filing the instant motion was a result of excusable neglect. Courts have held that relief may be granted when the delay is a result of factors outside the attorney's control, such as a glitch in office machinery or an error by clerical staff. (See Huh v. Wang (2007) 158 Cal.App.4th 1406, 1424; Ambrose v. Michelin North America (2005) 134 Cal.App.4th 1350, 1354.) Here, an automated filter sorted Defendant's served memorandum of costs, which is beyond Plaintiff's control. While Plaintiff's counsel's declaration does not address how or why this occurred, counsel does declare Defendant's Request for Entry of Costs on Judgment was received by their email services account, indicating Plaintiff has received some of Defendant's electronic service. (Baker Decl., ¶ 5.)

Accordingly,

the Court exercises its discretion to review the moving papers on its merits.

Merits

Plaintiff

argues Defendant's claimed costs are unnecessary and unreasonable. (Mot., p. 2.) In opposition, Defendant argues Plaintiff has not met her burden of establishing Defendant's costs should be taxed. (Opp., p. 6.) In Plaintiff's reply brief, Plaintiff narrows her request to tax costs to \$8,186.18 (rather than the \$10,752.28 originally sought).

The

Court addresses each disputed category of costs in turn.

1. Filing and Motion Fees

Defendant

seeks \$1,903.50 in filing and motion fees. (Memo. of Costs, p. 1, Item 1.)

Plaintiff

argues it is impossible to determine whether the filing fees are court imposed statutory filing fees versus non-recoverable filing fees because Defendant failed to attach invoices to its memorandum of costs. (Mot., pp. 2-3.) Plaintiff further argues physical delivery or pickup of trial binders is not recoverable. (Mot., p. 3.) Finally, Plaintiff argues two filings are related to OSC proceedings for failure to appear and failure to file. (Mot., p. 3.) Plaintiff contends these filings arising from Defendant's own procedural defaults are not reasonably necessary to the conduct of litigation, and thus not recoverable. (Mot., p. 3.)

In

opposition, Defendant argues Plaintiff speculates on whether the filing fees are recoverable, and offers no evidence in support. (Opp., p. 7.) Defendant contends a verified memorandum of costs constitutes prima facie evidence that claimed costs were necessarily incurred and reasonable in amount, and that Plaintiff has not met her burden demonstrating that a particular item is not recoverable. (Opp., p. 7.)

In

reply, Plaintiff reiterates her specific challenge to the binder delivery and

pickup costs and costs associated with Defendant's own procedural defaults.
(Rep., p. 3.)

Filing

and motion fees are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(1), so the Court declines to tax those fees. Binder delivery and pickup fees are not expressly allowed by section 1033.5. Because these fees are not expressly allowed, Defendant must show the claimed fees were reasonable and necessary. Defendant does not specifically address the binder delivery and pickup fees in its opposition and thus offers no evidence these charges were reasonable and necessary to conduct this litigation.

Accordingly,
the Court taxes Item 1 by \$446.38 to reflect \$1,457.12 in filing and motion fees actually incurred.

2. Deposition Costs

Defendant
seeks \$3,873.80 in deposition costs. (Memo. of Costs, p. 1, Item 4.)

Plaintiff

argues Defendant has failed to attach invoices and thus establish the reasonableness and necessity of the amount claimed. (Mot., p. 3.) Specifically, Plaintiff argues the invoices attached for the depositions costs include non-recoverable costs such as expedited charges or platform service costs.

In
opposition, Defendant argues the depositions at issue were reasonably necessary to the preparation and trial of this matter. (Opp., p. 7.) Defendant further argues Plaintiff has not established any expense was unnecessary or unreasonable. (Opp., p. 7.)

In

reply, Plaintiff argues Defendant failed to offer evidence why the challenged expedited costs and other premium vendor charges are recoverable. (Rep., pp. 3-4.)

Deposition

costs are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(3). However, the costs are limited to the cost of the actual taking, video recording, and transcribing necessary depositions. (Code Civ. Proc., § 1033.5, subdivision (a)(3).) Charges to expedite depositions and platform services costs are not expressly recoverable; as such, Defendant must show the claimed fees of \$786.00 for an expedited deposition and \$180.00 for platform services were reasonable and necessary. Defendant offers no such showing.

Accordingly,
the Court taxes Item 4 by \$966.00 to reflect \$2,907.80 in deposition costs actually incurred.

3. Witness and Expert Fees

Defendant
seeks \$13,430.00 in witness fees. (Memo. of Costs, p. 1, Item 8.)

Plaintiff
argues expert fees are not recoverable under section 1033.5, subdivision (a), if they are not ordered by the Court. (Mot., p. 3.) Plaintiff further argues mileage charges should be taxed. (Mot., pp. 3-4.)

In
opposition, Defendant argues it has an independent basis for recovering fees under Code of Civil Procedure section 998. (Opp., p. 7.) Specifically, because Plaintiff failed to obtain a judgment more favorable than Defendant's section 998 offer, Defendant is entitled to recover its reasonably necessary post-offer expert witness fees. (Opp., p. 8.)

In
reply, Plaintiff argues Defendant offers no explanation as to why the challenged mileage costs are recoverable. (Rep., p. 4.)

If a
plaintiff rejects a defendant's settlement offer under Code of Civil Procedure section 998 and the plaintiff fails to obtain a more favorable judgment, the plaintiff may not recover his post-offer costs and must pay the defendant's costs from the time of the offer. (Code Civ. Proc., § 998, subd. (c)(1).) These costs may include the defendant's reasonable costs for expert witnesses, including the expert witnesses who are not court-ordered. (Code Civ. Proc., § 998, subd.

(c)(1); Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 55.)

On

January 16, 2024, Defendant made a settlement offer of \$10,000.00. (Abramova Decl., ¶ 2; Ex. A.) Plaintiff did not accept Defendant's offer. (Abramova Decl., ¶ 3.) Following trial, judgment was entered in favor of Defendant. (Abramova Decl., ¶ 3.) Defendant is therefore entitled to its actually incurred and reasonably necessary costs for the services of expert witnesses in preparation for trial. (See Code Civ. Proc., § 998, subd. (c)(1).)

Here,

all of the claimed charges of the expert witness's invoice occurred after the settlement offer on January 16, 2024. (See Memo. of Costs, Ex. B.) Therefore, these costs are recoverable under section 998.

As to

Plaintiff's mileage challenge, an expert's travel may be recovered in the court's discretion. (Chaaban, supra, 203 Cal.App.4th at pp. 56-57.) The Chaaban court found the costs involved in the expert's travel time were allowed under section 998, as the invoices and the amount claimed seemed to match, and Chaaban did not specify a discrepancy. (Id.) Here, similar to Chaaban, the amount claimed matches the amount on the invoice. Further, this mileage was incurred during trial, after the settlement offer was made. Therefore, the Court finds these mileage costs are allowed under section 998.

Accordingly,

the Court declines to tax the witness and expert fees.

4. Court Reporter Fees

Defendant

seeks \$14,537.59 in court reporter fees. (Memo. of Costs, p. 1, Item 11.)

Plaintiff

argues several fees claimed are premium add-on services purchased for the convenience of defense counsel during trial. (Mot., p. 4.) Plaintiff contends they must be taxed in full, as they are not court reporter fees established by statute. (Mot., p. 4.) Plaintiff further argues late fees are not recoverable under section 1033.5. (Mot., p. 4.)

In

opposition, Defendant argues it reasonably incurred costs associated with obtaining the official record and transcripts necessary for trial preparation and post-trial proceedings. (Opp., p. 8.)

In

reply, Plaintiff argues Defendant offers no explanation as to why the challenged fees are necessary and recoverable. (Rep., p. 4.)

Court

reporter fees are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(11). However, premium add-on and late fees are not expressly allowed by section 1033.5. Because these fees are not expressly allowed, Defendant must show the claimed fees were reasonable and necessary.

The

Court declines to tax the charges for real-time feed streaming (\$1,026), as that feature was requested by the Court during trial. However, the Court will tax the remaining premium charges—namely, the litigation stenographic premium fees (\$2,000), rough draft fees (\$1,026), late fees (\$1,491.16), and a DepoSummary Pro platform charge (\$214)—as Defendant offers no specific argument as to these charges and thus has not shown that the additional charges were reasonable and necessary to conduct this litigation.

Accordingly,

the Court taxes Item 11 by \$4,731.16 to reflect \$9,806.43 in court reporter fees actually incurred.

5. Other Costs

Defendant

seeks \$579.06 in other costs. (Memo. of Costs, p. 1, Item 16.)

Plaintiff

argues the other costs, namely mileage, lunch, and parking for attorneys during trial dates, are not recoverable as a matter of right under section 1033.5. (Mot., p. 4.) Plaintiff contends they are recoverable only upon a showing they were reasonably necessary to the conduct of the litigation. (Mot., p. 4.)

In

opposition, Defendant argues the claimed costs were incurred in connection with Defendant's participation in trial and are modest in amount. (Opp., p. 8.) Defendant further argues Plaintiff has not established the expenses were unnecessary or unreasonable. (Opp., pp. 8-9.)

In

reply, Plaintiff argues Defendant offers no explanation as to why counsel's mileage, parking, and meal expenses are recoverable costs. (Rep., p. 5.)

Mileage,

lunch, and parking are not expressly allowed by section 1033.5. Because these fees are not expressly allowed, Defendant must show the claimed fees were reasonable and necessary. While the Court might have been inclined to find travel and mileage expenses reasonable and necessary, Defendant has not provided a specific breakdown of costs spent on parking/mileage versus lunch expenses. As such, the Court taxes Item 16 by \$360.56 to reflect \$218.50 in other costs actually incurred.